

LAW & MOTION CALENDAR
TENTATIVE RULINGS

July 2, 2026

10:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
1	Center for Natural Lands Management vs. City of Dana Point 2025-01524239	Plaintiff’s Motion to Augment the Administrative Record <u>MOTION TO AUGMENT THE RECORD</u> CNLM’s motion to augment the record, or in the alternative, request for judicial notice is DENIED. At issue are six documents relating to 2026 enforcement proceedings instituted by the California Coastal Commission against CNLM. Four of the documents are from the enforcement proceedings themselves, and two of the documents are letters between CNLM and the City regarding the proceedings. As to augmenting the record, “A fundamental rule of administrative law is that a court’s review is confined to an examination of the record before the administrative agency <i>at the time it takes the action being challenged.</i> ” (<i>Evans v. City of San Jose</i> (2005) 128 Cal.App.4th 1123, 1144 (emphasis added).) The City’s underlying CEQA determinations occurred in October 2025. These six documents were not, and could not have been, before the City at that time. Pub. Res. Code § 21167.6(e), which sets forth categories of documents that are to be included in the record, is broad in scope, but its breadth is not unlimited. None of CNLM’s authorities on record augmentation concerns documents that post-date the agency decision at issue. “[D]ocuments generated <i>after</i> the [agency] decision are generally inadmissible on the abuse of discretion issue,” and the Court sees no reason

	to depart from that rule here. (<i>San Francisco Tomorrow v. City and County of San Francisco</i> (2014) 229 Cal.App.4th 498, 533 (emphasis original).) As to judicial notice, “[I]t would never be proper to take judicial notice of evidence that (1) is absent from the administrative record, <i>and</i> (2) was not before the agency at the time it made its decision. This is so because only relevant evidence is subject to judicial notice [citation], and the only evidence that is relevant to the question of whether there was substantial evidence to support a[n agency’s] administrative decision . . . is that which was before the agency at the time it made its decision.” (<i>Western States Petroleum Assn. v. Superior Court</i> (1995) 9 Cal.4th 559, 573 fn. 4.) <u>PETITION FOR WRIT OF MANDATE</u> In lieu of a tentative ruling, the Court has prepared a list of questions the parties should be prepared to address. Depending on how the hearing progresses, the Court may invite further briefing on some topics. 1. To the extent the City’s initial study or the exemption memorandum may describe the project inaccurately (which the Court understands is a point of contention), what effect would that have on whether these documents may be considered substantial evidence to support the City’s determinations? 2. The exemption memorandum finds subdivision (a) of SERP (Public Resources Code § 21080.56) inapplicable because the project isn’t limited “exclusively” to conservation uses. It also includes educational, environmental justice, etc. uses. Doesn’t subdivision (b) of SERP allow for incidental public uses? Why doesn’t that subsection foreclose the City’s argument on this point? 3. The exemption memorandum also finds subdivision (a) inapplicable because the proposed trail closures go beyond what is “‘exclusively’ necessary” to conserve PPM populations. Does SERP only apply when a project provides the bare minimum necessary for conservation purposes, or may a project go beyond the bare minimum? The Court notes that the word “necessary” is found nowhere in subdivision (a). 4. The 2025 exemption memorandum concludes there is no connection between trail access and PPM populations based on evaluation of data though 2022. (AR 4041) However, CNLM’s application included population data through 2024. (AR 8473 et seq.) Why didn’t the exemption memorandum address the two extra years of data? Can the City properly rely on an expert opinion that omits the two most recent years of PPM population data? 5. The 2025 exemption memorandum quotes an October 2021 email from CNLM staff about the unreliability of PPM population data. Assuming this email is accurate about data collected through October 2021, how is it relevant to data collected after October 2021?
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		6. Citing the same email chain, the exemption memorandum questions whether the purpose of the project is exclusively PPM conservation. The Court has several questions in this regard: a. Assume CNLM is also motivated by staffing concerns or other issues discussed in the emails, in addition to PPM conservation. These potential motivations are mentioned nowhere in the CDP application. Is it proper to consider motivations never mentioned in the CDP application when determining whether SERP applies? b. Deborah Rogers, who wrote the emails, is the executive director of CNLM. Are her emails properly considered the official position of CNLM, or are they her personal opinions? If the latter, is it proper to attribute her opinions to CNLM? c. Assume the emails accurately portray CNLM’s motivations in October 2021. How are they relevant to CNLM’s motivations in 2024, when it filed the CDP application? Put another way, are CNLM’s motivations in 2021 substantial evidence of its motivations in 2024? 7. A project is eligible for SERP only if subdivisions (a) and (c) of the statute are satisfied. CNLM doesn’t appear to directly address subdivision (c) in its opening brief. Are the two subparts of subdivision (c) indirectly or otherwise referenced? 8. In analyzing subdivision (c), the exemption memorandum construes or interprets words and phrases in the statute. (E.g., AR 4042-4045) To what extent, if any, is the consultant’s statutory analysis (as opposed to factual analysis) entitled to deference? 9. The exemption memorandum concludes the project wouldn’t promote biodiversity or species recovery because the PPM population lacks sufficient genetic diversity to survive. Is the City’s position that once a species becomes <i>too endangered</i>, projects to preserve it are ineligible for SERP? 10. To what extent does a CDP application need to specify the procedures and ongoing management required for SERP to apply? Why isn’t it sufficient for CNLM to simply refer to the requirements of other documents, such as the HDCP, or is additional detail required? 11. What is the standard of review for determining whether the unusual circumstances exception (Guidelines § 15300.2) applies? <i>Berkeley Hillside Preservation v. City of Berkeley</i> (2015) 60 Cal.4th 1086 says substantial evidence review applies. (<i>Id.</i>, at p. 1114.) However, <i>Azusa Land Reclamation Co. v. Main San Gabriel Basin Watermaster</i> (1997) 52 Cal.App.4th 1165 splits the burden into two parts: whether factual circumstances exist, which is subject to substantial evidence review, and whether those circumstances are unusual, a question of law reviewed de novo. (<i>Id.</i>, at p. 1207.)
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		12. Moreover, does the standard of review differ based on whether or not the agency has found that unusual circumstances exist? 13. Pursuant to Pub. Res. Code § 21166, an SEIR is required when there are substantial changes to a project that will require major revisions to the EIR. As the Court understands it, the Headlands Project included, among other things, a network of trails including the trail in question. That trail is described generally at AR 7414, although not the hours or days it will be open. Does a limit on the days and hours of this trail qualify as a “substantial change” at all since no specific days or hours were established in the first place? 14. Why does the City’s own CDP setting trail hours qualify for a Class 1 exemption (AR 11116) when no specific hours or days are included in the 2004 Project approvals and EIR? 15. “The key consideration” for determining a Class 1 exemption is whether “the project involves negligible or no expansion of use.” Why is a restriction of trail hours, by definition, <i>not</i> an “expansion of existing or former use?” 16. Given the scope of the entire Project, is there really evidence of the need for “major revisions” of the EIR based on the trail hours alone? 17. CNLM contends that Section 21166 requires a showing of “new significant environmental impacts” in order to support an SEIR. (Open. Brief p. 13) Here, the alleged impacts have to do with reduced days and times a certain view is available (aesthetic), possible effect on recreation availability, possible transportation effects, and land use planning effects (relating to the trail that appears to have been specifically contemplated in the 2004 Headlands Development and Conservation Plan and EIR addendum at AR 7414). What is the substantial evidence that these alleged impacts actually qualify as “significant.” Are they “significant” simply because the City and its consultants say so?
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